

Tentative Rulings for August 19, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 782 8254**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2404773	MARTINEZ vs FORD MOTOR COMPANY	MOTION FOR RELIEF

Tentative Ruling:

The motion for relief is denied.

“Counsel’s error did not deprive [plaintiff] of her “day in court.” [Citation.] [She] had her day in court and consequently settled her case as the prevailing party. What she lost, for lack of a better word, was the opportunity to file and litigate her motion for attorney fees and costs before the court dismissed her settled case.” (*Hernandez v. FCA US LLC* (2020) 50 Cal.App.5th 329, 338.) As the *Hernandez* court recognized, this is not the type of dismissal for which mandatory relief is available.

Moreover, the court does not grant discretionary relief as it is unclear what the actual error is, where, as here, it is claimed that there was a calendaring error for the OSC re Dismissal hearing date. However, if the dismissal was June 30, a timely motion for attorney fees could have still been filed afterwards. Moreover, Plaintiff claims the court retained jurisdiction pursuant to Code of Civil Procedure section 664.6, so the court finds no reason to grant the relief requested for the stated purpose it is requested for.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405945	TREMONT RANCH PROPERTY OWNERS ASSOCIATION vs ORBIS FINANCIAL, LLC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The hearing on the motion is continued to September 8, 2026, at 8:30 a.m., to consider the opposition. A reply brief may be filed five days before the continued hearing date. Other than the reply, no further briefing is permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2501056	ARREDONDO vs JURUPA UNIFIED SCHOOL DISTRICT	MOTION TO COMPEL PRODUCTION

Tentative Ruling:

Should the deposition of District's PMQ and for production of documents noticed for August 18, 2026, not change the status of this motion and moot it, **the motion is denied.**

Plaintiff met her obligation to meet and confer.

However, although the subject documents sought by Plaintiff may be relevant, the evidence cited and relied upon by Plaintiff, in part, are not before the court, mainly the deposition transcript of Michael Rogers. Plaintiff has not met her evidentiary showing for the relief requested. Other referenced documents are also unattached.

In the moving Declaration of Elissa K. Buenrostro ("EKB Decl."), she refers to Exhibits, but no Exhibits are attached to the declaration, although the opposition includes lodged exhibits and include *some* of the documents referenced.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505382	AMERICAN EXPRESS NATIONAL BANK vs DENTI	MOTION TO SET ASIDE DEFAULT JUDGMENT

Tentative Ruling:

The court denies the request for judicial notice as it is unnecessary to take judicial notice of documents already filed in this case.

The court grants the motion pursuant to Code of Civil Procedure section 473, subdivision (b). The entry of default (January 13, 2026) and default judgment (filed on April 14, 2026) against Defendants Dion Denti and Your Villa Magazine, Inc. are hereby set aside and vacated. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 18, 2026.

Defendants shall file and serve their answer or other responsive pleading to the Complaint within ten (10) days of this order.

The court sets a Case Management Conference on September 24, 2026, at 8:30 a.m.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601276	CONGDON vs COUNTY OF RIVERSIDE	DEMURRER ON COMPLAINT

Tentative Ruling:

Defendant satisfied the statutory meet and confer requirement with a telephone call.

Defendant requests judicial notice of the job description for a Clinical Therapist I and an online license search result from the California Board of Science. Neither request is proper as Defendant is attempting to use a request for judicial notice to bootstrap evidence in on a pleadings challenge. Both documents are pulled from websites. (See Declaration of Sarah Swanson, ¶ 3 [describing obtaining Exhibit E from www.governmentjobs.com]; See also Request for Judicial Notice, ¶ 2, [describing Exhibit F as the result of a search on the California Department of Consumer Affairs public website].)

Not only is judicial notice of a website improper, but judicial notice of the truth of a documents' contents is also improper. (*Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [“[t]aking judicial notice of a document is not the same as accepting the truth of its contents”]; *Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 194 [cannot take judicial notice of a website].)

The request for judicial notice is denied in its entirety.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Kattelman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

Uncertainty

While Defendant specially demurs to the complaint on the ground of uncertainty under CCP § 430.10(f), Defendant fails to explain how any of the claims are uncertain such that they cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) The complaint is not so unintelligible that Defendant cannot respond. **Accordingly, the demurrer is overruled on grounds of uncertainty.**

First and Second Causes of Action – FEHA Discrimination

Under California law, to establish a discrimination claim under FEHA, a plaintiff must show: (1) they belong to a protected class; (2) they were qualified for the position; (3) they suffered an adverse employment action; and (4) there are circumstances suggesting that the adverse action was taken because of the plaintiff's protected status. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.)

First, Defendant argues that these causes of action fail because the reason for Plaintiff's termination was letting her license expire. This argument relies on Defendant's requests for judicial notice. As stated above, the requests are denied and this argument fails. Defendant also argues Plaintiff fails to allege any facts that demonstrate she was terminated because of gender, sex, or age. To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

The first and second causes of action generally restate the elements of discrimination but lack specific facts supporting any of the elements. (Complaint, ¶¶ 16-21 and 23-28.) The general allegations likewise fail to meet the particularity requirement, only generally stating Defendant, "...routinely discriminated against Plaintiff and harassed Plaintiff because of Plaintiff's age, sex and gender." (*Id.* at ¶ 10.) It goes on to generally refer to Plaintiff experiencing "discriminatory and harassing treatment" and Defendant engaging in a "pattern and practice of surveilling Plaintiff...as part of a harassing campaign ... because of her age, sex, and gender." (*Id.* at ¶¶ 11-12.) There is also a general allegation of Defendant hiring younger employees for Plaintiff's position, but this allegation is not tied to Plaintiff's experience or discrimination. (*Id.* at ¶ 9.) There are no allegations connecting any adverse employment action to any discrimination or that Plaintiff was qualified for her position.

The court sustains demurrer to the first and second causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Third Cause of Action – FEHA Harassment

"To prevail on a claim of hostile work environment under FEHA, an employee must show he or she was subjected to harassing conduct that was (1) unwelcome, (2) because of sex or gender, and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment. [Citation.]" (*Wawrzenski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 692.)

The complaint is insufficient in alleging a claim for harassment, only generally restating the elements of a harassment claim without the required particularity. The only factual allegation is a general reference to a "systemic campaign to fire" Plaintiff, including

“baseless accusations of having an inappropriate relationship with her client, surveilling her..., and terminating her....” (Complaint, ¶ 31.) This is insufficient.

The court sustains the demurrer to the third cause of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.

Fourth Cause of Action – Failure to Prevent

Government Code §12940(k) creates a separate actionable tort for failure to take reasonable steps necessary to prevent discrimination and harassment. Retaliation is a form of discrimination actionable under section 12940(k), therefore making it unlawful for an employer to fail to prevent retaliation. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1239-1240, *disapproved of on other grounds by Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158.) The general elements include a duty of care, breach, causation and damages. (See *Trujillo v. North County Transit District* (1998) 63 Cal.App.4th 280, 289.) As a rule, there can be no failure to prevent if there is no underlying claim. (*Id.* at 284.)

Because the first three causes of action are subject to demurrer, there is no underlying claim. **The court sustains the demurrer to the fourth cause of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.**

The demurrer is sustained as all causes of action, with ten (10) days leave to amend from the date of service of the notice of ruling or service of the signed order, whichever is first.